

M/S Krishna Gears Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 6 March 2017 · Writ - C No. 10082 of 2017 · **Writ petition dismissed; petitioner relegated to the alternative remedy of the installment facility under clause 6.14 of the Supply Code.**

HEADNOTE

Where the only relief sought against a recovery citation for unpaid electricity dues was permission to pay the amount in installments, the Court declined to entertain the writ petition on the ground that the petitioner had an alternative remedy under clause 6.14 of the U.P. Electricity Supply Code, 2005, which provides the installment facility, and accordingly dismissed the petition.

FACTUAL SUMMARY

M/S Krishna Gears Pvt. Ltd. was served with a recovery citation dated 12 January 2017 for electricity dues it had not deposited in time. In its writ petition the company's only prayer was that it be permitted to deposit the amount in installments. The respondents submitted that an alternative remedy was available under clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Installment facility as an alternative remedy

HOLDING

Where a consumer aggrieved by a recovery citation for unpaid electricity dues seeks only permission to pay in installments, the writ court declines to entertain the petition because an alternative remedy exists under clause 6.14 of the U.P. Electricity Supply Code, 2005, which provides the installment facility; the petition is dismissed on that ground.

PRINCIPLE TAGS

installment-payment-clause-6.14 Where the only relief sought against a recovery citation for unpaid electricity dues was permission to pay the amount in installments, the Court declined to entertain the writ petition on the ground that the petitioner had an alternative remedy under clause 6.14 of the U.P..

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION AND THE UNDERLYING BILL

Not examined; the petition was dismissed on the availability of the alternative installment remedy under clause 6.14.